

MOTION TO CONTINUE TRIAL AND TRIAL-RELATED DEADLINES

TENTATIVE RULING: The Court, having considered Defendant David Langon Construction, Inc.’s showing of good cause, the factors under Rules of Court, rule 3.1332(d), and the parties’ briefs, GRANTS the motion. The Trial Management Conference (TMC) is hereby continued to December 3, 2026 at 8:30 a.m. in Dept. B, and Trial is continued December 7, 2026, at 8:30 a.m. in Dept. B. The Court will sign the proposed order.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

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Maudie Pollatrini v. Auberge Resorts, LLC et al

24CV001401

[1] DEFENDANT AUBERGE RESORTS, LLC’S MOTION TO COMPEL
ARBITRATION

TENTATIVE RULING: The motion is DENIED.

Defendant Auberge Resorts LLC (Auberge) moves for an order compelling Plaintiff Maudie Pollatrini to arbitrate her claims asserted against Auberge in this action on grounds “that Plaintiff entered into a binding and enforceable Arbitration Agreement . . .” (Notice of Motion at 2:7-9.)

A. LEGAL BACKGROUND

A proceeding to compel arbitration is, in essence, a suit in equity to compel specific performance of a contract. (*California Teachers Assn. v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399.) On a motion to compel arbitration, supported by prima facie evidence of a written agreement to arbitrate the underlying controversy, the court must determine whether the agreement exists and, if any defense to its enforcement is raised, whether the agreement is enforceable. (*Rosenthal v. Great Western Financial Sec. Corp.* (1996) 14 Cal.4th 394, 413 (*Rosenthal*)). The moving party bears the burden of proving the existence of the agreement by a preponderance of the evidence. (*Ibid.*) The opposing party bears the burden of producing evidence of and proving (by a preponderance) any fact necessary to any defense raised. (*Ibid.*) California law strongly favors arbitration. (*Prima Donna Development Corp. v. Wells Fargo Bank, N.A.* (2019) 42 Cal.App.5th 22, 35 (*Prima Donna*)).

B. ANALYSIS

1. Auberge is Not a Party to the Subject Arbitration Agreement

“The scope of arbitration is a matter of agreement between the parties. A party can be compelled to arbitrate only those issues it has agreed to arbitrate.” (*Larkin v. Williams, Woolley, Cogswell, Nakazawa & Russell* (1999) 76 Cal.App.4th 227, 230 (*Larkin*).) “There is no public policy in favor of forcing arbitration of issues the parties have not agreed to arbitrate. [Citation.] It follows that when presented with a petition to compel arbitration, the trial court’s first task is to determine whether the parties have in fact agreed to arbitrate the dispute.” (*Gorlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505.) “[W]ith limited exceptions only parties to an arbitration agreement can enforce it or be required to arbitrate.” (*Jones v. Jacobson* (2011) 195 Cal.App.4th 1, 17.)

Auberge is not a party to the subject arbitration agreement (Arbitration Agreement). (See Notice of Lodgment of Exhibits at Exh. A.)

2. Equitable Estoppel Does Not Apply

Auberge argues that even as a non-party, it is entitled to enforce the Arbitration Agreement as against Plaintiff pursuant to the doctrine of equitable estoppel. (See Support Memo at 20:4, *et seq.*) “Under that doctrine . . . a nonsignatory defendant may invoke an arbitration clause to compel a signatory plaintiff to arbitrate its claims when the causes of action against the nonsignatory are ‘intimately founded in and intertwined’ with the underlying contract obligations.” (Citations.) ‘By relying on contract terms in a claim against a nonsignatory defendant, even if not exclusively, a plaintiff may be equitably estopped from repudiating the arbitration clause contained in that agreement.’ (Citation.) ‘The rule applies to prevent parties from trifling with their contractual obligations.’ (Citation.)” (*JSM Tuscany, LLC v. Super. Ct.* (2011) 193 Cal.App.4th 1222, 1237 (*JSM*).) The archetypal fact pattern to which the doctrine is applied involves a Plaintiff signatory suing a non-signatory defendant for breach of the contract containing the arbitration provision. (See, *e.g.*, *Boucher v. Alliance Title Co., Inc.* (2005) 127 Cal.App.4th 262, 265.) “‘The plaintiff’s actual dependence on the underlying contract in making out the claim against the non-signatory defendant is . . . always the *sine qua non* of an appropriate situation for applying equitable estoppel.’” (*Goldman v. KPMG, LLP* (2009) 173 Cal.App.4th 209, 229, quoting *In re Humana Inc. Managed Care Litigation* (11th Cir. 2002) 285 F.3d 971, emphasis omitted.)

Auberge fails to persuade the Court that Plaintiff’s claims against it are dependent on the Arbitration Agreement. To the contrary, the Court can find no suggestion in the allegations of the First Amended Complaint that Plaintiff’s claims arise out of the Arbitration Agreement or that Plaintiff relies on the agreement in stating any of her claims. Auberge fails to cite to authority supporting its argument that Plaintiff’s assertion of the same claims against co-defendant SRGA, who *has* agreed to arbitrate such claims, constitutes grounds for invoking the doctrine in Auberge’s favor. The Court is aware of no such authority.

Metalclad Corp. v. Ventana Environmental Organizational Partnership (2003) 109 Cal.App.4th 1705, (*Metaclad*), cited and discussed by Auberge, is distinguishable. In *Metaclad*, the plaintiff's claims against the signatory and non-signatory defendants all arose out of the contract containing the arbitration provision that the non-signatory defendants sought to enforce against the plaintiff. (See *id.* at p. 1717 ["Metalclad's breach of contract claim against Ventana could not be more 'intimately founded in and intertwined with' the underlying Geologic contract"].)

Jarboe v. Hanlees Auto Group (2020) 53 Cal.App.5th 539 (*Jarboe*) the other case cited by Auberge in its Support Memo, supports the Court's conclusion. "Jarboe's claims against the company, DKD of Davis, arising from his employment agreement will proceed to arbitration. The claims against other defendants for which there is no agreement to arbitrate will not. The mere fact that the claims against Leehan of Davis and the other defendants may be related to the claims DKD of Davis is arbitrating against Jarboe does not compel application of equitable estoppel." (*Id.* at p. 55.)

3. Auberge's Intended Beneficiary and Affiliated Entity Claims Were Not Timely Raised and Are Unsupported

Through the Reply, Auberge argues "even if Auberge was not a signatory to the Arbitration Agreement, it is allowed to enforce the agreement as an intended beneficiary." (*Id.* at 2:6-7.) Auberge also argues that it is an "affiliated entity" pursuant to the terms of the Arbitration Agreement.

Auberge did not, however, raise either argument in its moving papers. "[T]he court may disregard arguments or grounds for demurrer first raised in a reply brief." (Weil & Brown, et al., Cal. Practice Guide: Civ. Proc. Before Trial (The Rutter Group 2020) §7:122.9, p. 7(I)-54; see also *Balboa Ins. Co. v. Aguirre* (1983) 149 Cal.App.3d 1002, 1010 ["[t]he salutary rule is that points raised in a reply brief for the first time will not be considered unless good cause is shown for the failure to present them before"].)

The arguments go to Auberge's initial burden of demonstrating a binding agreement to arbitrate the controversy. The fact that Auberge asserted its equitable estoppel argument through the moving papers demonstrates that Auberge was, then, aware of the need to develop a legal theory by which it, as a non-signatory, could enforce the Arbitration Agreement against Plaintiff. As such, there is no apparent reason why Auberge could not have raised its "intended beneficiary" and/or "affiliated entity" arguments with the moving papers. Auberge provides no explanation for the failure to do so.

Even had Auberge raised the arguments through its moving papers, it has produced no evidence tending to support the central factual contentions; that it is either an "intended beneficiary" of the Arbitration Agreement, or an "affiliate" as that term is used in the Arbitration Agreement. Indeed, Auberge fails to produce evidence tending to show what its relationship was to SRGA Resort LP vis-à-vis Plaintiff's employment and/or the Arbitration Agreement.

C. CONCLUSION

Based on the foregoing, the Court finds that Auberge fails to carry its initial burden of making a prima facie showing of a written agreement to arbitrate Plaintiff's claims against Auberge. (See *Rosenthal, supra*, 14 Cal.4th at 413.) The Motion to compel Plaintiff to arbitrate those claims is, therefore, DENIED.

[2] DEFENDANT'S MOTION TO STAY PLAINTIFF'S FIRST AMENDED COMPLAINT

TENTATIVE RULING: The motion is MOOT.

Defendant Auberge Resorts LLC (Auberge) moves, for an order staying the case pending resolution of the arbitration in the above-entitled action filed by Plaintiff Maudie Pollastrini. Because, concurrently herewith, the Court denies Auberge's Motion to Compel Arbitration, the instant motion is MOOT.

[3] DEFENDANT'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

TENTATIVE RULING: The demurrer is OVERRULED. Auberge is granted 10 calendar days leave to file an Answer to the First Amended Complaint. (See Cal. Rules of Ct., rule 3.1320, subd. (g).)

A. PRELIMINARY MATTERS

Defendant Auberge Resorts LLC (Auberge) demurs, pursuant to California Code of Civil Procedure, section 430.10, subdivision (c), (Section 430.10(c)), to Plaintiff Maudie Pollastrini's First Amended Complaint (FAC) on grounds that there is another action pending between the same parties on the same cause of action.

Auberge's Request for Judicial Notice is GRANTED. The Court takes judicial notice of the subject matters of the request, but not for the truth of matters set forth therein.

B. PROCEDURAL HISTORY

Plaintiff Maudie Pollastrini commenced the instant action on August 15, 2024, by filing a Complaint asserting claims under the Private Attorneys General Act (PAGA) against SRGA Resort LP (SRGA) and Auberge. Ms. Pollastrini asserted her claims against the "Defendants" collectively. (See, e.g., Complaint at ¶ 6 ["Defendants and/or DOES employed Plaintiff and the aggrieved employees to staff and maintain Defendants' and/or DOES' hotels, restaurants, and resorts in the State of California"].) On October 30, 2024, Auberge and SRGA filed a joint Answer to the Complaint. On October 13, 2025, the parties filed a stipulation that provided, in part, that "Plaintiff has agreed to dismiss Defendant AUBERGE RESORTS LLC without prejudice based on the representations from both Defendants, including Amy Brandt, Chief Financial Officer for Auberge Resorts, that Plaintiff was employed by Defendant SRGA

RESORT LP and not Defendant AUBERGE RESORTS LLC . . .” Based on that stipulation, the Court dismissed the action against Auberge by order of October 13, 2025.

On October 24, 2025, Jessica Fernandez, a third-party to the instant action, commenced the action captioned *Jessica Fernandez v. SRGA Resort LP, et al.*, and bearing Napa County Superior Court Case No. 25CV002248 (*Fernandez v. SRGA*), by filing a Complaint asserting claims against SRGA and Auberge for violation of PAGA.

On May 5, 2026, Ms. Pollastrini, with leave of the Court, filed a First Amended Complaint (FAC) in the instant action reasserting her claims against Auberge. The allegations and prayers for relief in the FAC are identical with those in the Complaint. (See, *e.g.*, Exh. 1 to Stipulation Permitting Plaintiff to Leave to File a First Amended Class Action Complaint filed April 29, 2026.)

C. LEGAL BACKGROUND

“The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on . . . grounds [that] . . . [t]here is another action pending between the same parties on the same cause of action.” (§ 430.10(c).) This ground is also known as the “statutory plea of abatement.” (*Plant Insulation Co. v. Fibreboard Corp.* (1990) 224 Cal.App.3d 781, 788 (*Plant Insulation*).) It requires “absolute identity of parties, causes of action [and] remedies sought in the initial and subsequent actions.” (*Ibid.*)

While Section 430.10(c) was an attempt to codify the common law plea in abatement, pursuant to caselaw, the common law plea survives as the rule of exclusive concurrent jurisdiction. (See *Plant Insulation Co.*, *supra*, 224 Cal.App.3d at 788 [“Although the rule of exclusive concurrent jurisdiction is similar in effect to the statutory plea in abatement, it has been interpreted and applied more expansively, and therefore may apply where the narrow grounds required for a statutory plea of abatement do not exist.”].) Namely, the common law rule of exclusive concurrent jurisdiction does not require identical parties or causes of action. (See *ibid.*) The common law rule of exclusive concurrent jurisdiction only requires that “the court exercising original jurisdiction has the power to bring before it all the necessary parties.” (*Ibid.*)

D. LEGAL ANALYSIS

Auberge concedes through its Memorandum that the instant action and *Fernandez v. SRGA* do not involve identical claims. (See Support Memo at 5:26-6:17, 7:16-21.) As such, the two actions do not satisfy the requirements of Section 430.10(c). (See *Plant Insulation*, *supra*, 224 Cal.App.3d at 788 [application of statutory abatement plea in abatement requires “absolute identity of parties, causes of action [and] remedies sought in the initial and subsequent actions”].)

Through its Support Memo, Auberge cites to *Plant Insulation*, and then asserts that “under the common law rule, the court may sustain a demurrer and abate a duplicative later-filed action, even where the parties in the later-filed action are not identical to those in the original action.” (Support Memo at 3:23-4:5.)

However, neither Auberge's Notice of Demurrer nor its Demurrer include "the common law rule of exclusive concurrent jurisdiction" as a ground for the relief sought, in violation of Rules of Court, rule 3.1110(a) and section 1010. The Court generally cannot grant different relief, or relief on *different grounds*, than that stated in the notice of motion. (See *Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1125.)

Moreover, Auberge's argument in support of common law abatement depends on a finding that the instant action was filed *after Fernandez v. SRGA*. As noted above, it was not.

Auberge argues that the claims against *it* in the instant action do not relate back to the filing of the original complaint pursuant to the holding in *Troche v. Daley* (1990) 217 Ca.App.3d 403. That opinion holds that an amended complaint renaming a defendant who was originally named, but dismissed without prejudice, does not "relate[] back to [the date of the] filing of the original complaint *for purposes of the statute of limitations*." (*Id.* at 412. Italics added.)

The statute of limitations is not at issue here. Thus, the holding in *Troche v. Daley* does not directly apply to the instant circumstances. The Court declines to apply it by analogy.

The PAGA claims asserted through the instant action are based on Ms. Pollastrini's, and similarly situated employees', employment with SRGA and/or Auberge. The allegations of the FAC are that SRGA and Auberge are joint or co- employers, as opposed to allegations of separate employment. Thus, the PAGA claims at issue in the instant litigation were never dismissed. The fact that Plaintiff dismissed Auberge, based on representations by its agents that it was not an employer of the subject population, does not, in the Court's analysis, support a conclusion that the instant action is the later filed of the two actions for purposes of applying the common law rule of exclusive jurisdiction.

Finally, Auberge ignores that the common law rule applies "when two superior courts have concurrent jurisdiction over the subject matter and all parties involved in litigation" and "is based upon the public policies of avoiding conflicts that might arise between courts if they were free to make contradictory decisions or awards relating to the same controversy, and preventing vexatious litigation and multiplicity of suits." (*Plant Insulation Co., supra*, 224 Cal.App.3d at 786-87.) Here, both matters are pending before the same court.

Based on the foregoing, the demurrer is OVERRULED.

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Brandon Roth v. Karma Lounge, LLC et al

25CV000801

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING: The Motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to